

IP Budget Estimate — Global Patents & Trademarks — Get Goods Gratis (Free)

⚠ **NOT LEGAL ADVICE AND NOT A QUOTE.** Planning-only cost ranges for the phased IP strategy in GLOBAL-LAUNCH-LEGAL-STRATEGY-BRIEF.md (\$8b). Figures are **2026 third-party/market ballparks** from IP-service and law-firm guides (sources at end), in **USD**. Actual cost swings widely by number of countries, technology complexity, and firm type (flat-fee service vs. boutique vs. BigLaw). A software/e-commerce patent tends to draw more examiner pushback, raising prosecution cost. **A patent attorney's written quote is the only real number.** Prepared 2026-09-13.

The framing: "global patents" is a ladder, not one purchase

Cost stays low until you choose to enter specific countries. The **PCT** preserves worldwide priority for ~2.5 years so the large national-phase spend is **deferred** to month 30 and incurred **only** in the markets you deliberately pick. Launching US-first (and geo-restricting the app) keeps near-term IP cost modest while global rights are still secured.

Phase 1 — Now (US-first + preserve global rights): ~\$15,000-\$40,000

Item	Ballpark (USD)
US provisional (draft already prepared)	gov't ~\$130-\$320 (micro/small entity) + ~\$1,000-\$3,000 attorney
US non-provisional / utility filing	~\$6,000-\$15,000 attorney (boutique) + ~\$1,820 gov't
US office-action responses (expect 2-3)	~\$2,000-\$6,000 each
PCT international application (holds ~150+ countries)	~\$4,000 gov't + \$2,000-\$8,000 attorney = ~\$5,500-\$12,000
US trademark (Madrid base application)	WIPO base ~\$720-\$995 + ~\$1,000-\$3,000 attorney

What Phase 1 buys: US patent + trademark protection **and** a locked worldwide patent priority date via the PCT — for well under ~\$40k — with no obligation to spend in any foreign country yet.

Phase 2 — ~Month 30 (national phase, only in chosen markets): the big variable

Per-country patent entry **~\$5,000-\$12,000 each** (government + local agent + translation); translations alone \$3,000-\$8,000 per language. Rough per market: **Europe (EPO)** ~\$3,000-\$7,000 to enter (then per-country validation on top); **China** ~\$2,000-\$5,000; **Japan** ~\$3,000-\$6,000; **Canada** ~\$1,500-\$3,500; **South Korea / Australia** ~\$2,000-\$4,000 each.

Published lifetime totals (entry + prosecution + maintenance):

Scope	Lifetime total (USD)
~3 markets (US + Europe + China)	~\$40,000-\$70,000
~5 markets (US + EPO + China + Japan + Canada)	~\$75,000-\$150,000
"Truly everywhere" (30+ countries)	~\$250,000-\$500,000+ — why almost no one does this

Trademark (Madrid) — much cheaper than patents

WIPO base ~\$720-\$995 + ~\$110-\$400+ per country designation. **5-10 countries ≈ \$2,500-\$5,000 in government fees**, plus attorney time → **~\$5,000-\$12,000 all-in** for a solid international footprint. **Copyright** is near-free (~\$65 US registration; automatic in ~180 Berne countries). **Trade secrets** cost nothing to hold (NDAs + access controls).

Ongoing (don't forget)

Patent annuities/maintenance are paid **per country, per year, and rise over time** — across many countries they compound into tens of thousands per year at scale. **Trademark renewals** every ~10 years. These are the hidden driver behind the "truly everywhere" total.

Bottom line

Near-term (US-first) IP spend is **~\$15,000-\$40,000** and secures both US protection and worldwide priority. The large numbers (**\$75,000-\$150,000+**) arrive only at month 30, only if you expand, and only for the countries you choose. The PCT is the instrument that lets you defer that decision.

Assumptions & caveats

- Micro/small-entity USPTO rates assumed where applicable; large-entity fees are higher.
- Software/e-commerce subject matter may need extra office-action responses (higher prosecution cost).
- Ranges assume flat-fee/boutique counsel at the low end, BigLaw at the high end.
- Excludes trademark clearance searches, patent landscape/freedom-to-operate opinions, and litigation/enforcement.
- Foreign figures include typical translation + local-agent costs but vary by country and claim length.

- Deadlines are hard (provisional +12 mo → PCT; TM +6 mo → Paris; priority +30 mo → national phase).

Not legal advice; not a quote. Confirm current fees and get a written estimate from a patent attorney. Related: GLOBAL-LAUNCH-LEGAL-STRATEGY-BRIEF.md (§5, §8b), PROVISIONAL-PATENT-APPLICATION-DRAFT.md, TRADEMARK-FILING-BRIEF.md, COUNSEL-SHORTLIST.md.

Sources (2026 market ballparks)

- MadePatents — International Patent Cost in 2026 (madepatents.com/guides/international-patent-cost)
- Tradespace — How Much Does a Patent Cost: 2026 Guide (tradespace.io)
- MarqVision — Cost to Trademark Internationally, 2026 (marqvision.com)
- UpCounsel — Worldwide Patent Costs and Strategy (upcounsel.com)